

ASCII MASTER FLOW – PANEL 1/9: Part IV's constitutional operating logic

PART IV: DIRECTIVE PRINCIPLES OF STATE POLICY, ARTICLES 36-51

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+-- ARTICLE 36: "STATE" carries the Part III / Article 12 meaning
|   +-- the same public power is restrained by rights and directed toward welfare
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+-- ARTICLE 37: THREE-PART CONSTITUTIONAL RULE
    +-- no court directly enforces a Directive Principle
    +-- the principles remain fundamental in governance
    +-- the State has a duty to apply them in making laws
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        +-- legislation + budget + administration + political accountability
        +-- interpretation of rights and statutes, without judicial budgeting
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CORE DISTINCTION

non-justiciable != optional; constitutional duty != an automatic individual remedy.

ASCII MASTER FLOW – PANEL 2/9: Articles 38-43B: welfare, work and democratic economy

SOCIAL ORDER AND DISTRIBUTION

- +-- 38(1): welfare through social, economic and political justice
- +-- 38(2): minimise inequalities in income, status, facilities and opportunities
- +-- 39(a): adequate livelihood 39(d): equal pay for equal work
- +-- 39(b): resources serve common good 39(e): worker / child health
- +-- 39(c): prevent harmful concentration 39(f): childhood in dignity

ACCESS AND SELF-GOVERNMENT

- +-- 39A: equal justice + free legal aid
- +-- 40: village panchayats as units of self-government

WORK, SECURITY AND ASSOCIATION

- +-- 41: work, education and assistance, subject to economic capacity
- +-- 42: humane work conditions + maternity relief
- +-- 43: living wage + decent life + rural cottage industries
- +-- 43A: workers participate in management
- +-- 43B: voluntary, autonomous, democratic and professional co-operatives

ASCII MASTER FLOW – PANEL 3/9: Articles 44-51: reform, capability and constitutional civilisation

REFORM / CAPABILITY

ECOLOGY / INSTITUTIONS / PEACE

44	Uniform Civil Code	48A environment, forests and wildlife
45	care and education below six	49 nationally important monuments and objects
46	weaker sections; especially Scheduled Castes and Tribes	50 judiciary separated from executive
47	nutrition, living standard, public health and prohibition	51(a) international peace and security
48	scientific agriculture and animal husbandry; cattle rule	51(b) just and honourable relations
		51(c) international law and treaty obligations
		51(d) arbitration of international disputes

CLOSE-OPTION CONTROLS

Article 41 contains an economic-capacity limit; Article 46 is not confined to SCs/STs.

Article 49 requires declaration by or under Parliamentary law.

Article 51 does not make every treaty self-executing in domestic law.

ASCII MASTER FLOW – PANEL 4/9: Classification and amendment overlays

ANALYTICAL CLASSIFICATION: THE CONSTITUTION DOES NOT CREATE THESE LABELS

- +-- SOCIALISTIC: 38, 39, 39A, 41, 42, 43, 43A, 47
- +-- GANDHIAN: 40, 43, 43B, 46, 47, 48
- +-- LIBERAL-INTELLECTUAL: 44, 45, 48, 48A, 49, 50, 51
- +-- OVERLAPS: 43, 46, 47 and 48 resist rigid pigeonholes

AMENDMENT OVERLAY

42nd, 1976 -> 39(f) recast; 39A, 43A and 48A inserted
44th, 1978 -> Article 38(2) inserted
86th, 2002 -> Article 21A inserted; Article 45 recast for children below six
97th, 2011 -> Article 43B inserted

EXAM RULE

Begin with the Article's exact text; use categories only as an explanatory aid.

ASCII MASTER FLOW – PANEL 5/9: FR-DPSP evolution and the surviving Article 31C

CHAMPAKAM DORAIJAN (1951) -> enforceable Fundamental Rights prevail over conflicting directives

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1st / 4th / 17th AMENDMENTS -> protective constitutional responses

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I.C. GOLAKNATH (1967) -> Parliament cannot amend Fundamental Rights

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1971 24th + 25th AMENDMENTS -> amendment power affirmed; Article 31C created

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KESAVANANDA BHARATI (1973) -> amend, but do not damage basic structure; first limb of 31C survives

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1976 42nd -> attempted extension of 31C to every DPSP

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MINERVA MILLS (1980) -> extension invalid; harmony between Parts III and IV is basic structure

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PROPERTY OWNERS ASSOCIATION (2024) -> surviving shield remains for genuine 39(b)/(c) laws

CURRENT SCOPE: shield against Articles 14 and 19; nexus and basic structure remain reviewable.

ASCII MASTER FLOW – PANEL 6/9: Implementation chain: directive to law, institution and outcome

NPSR TEXT

- > legislature selects instrument and competence
- > appropriation funds the programme
- > executive creates rules, staff and delivery systems
- > courts review legality and interpret rights consistently where possible
- > audit, opposition, civil society and elections test outcomes

ARTICLE 39A INSTITUTIONAL CHAIN

NALSA -> State Authorities -> District Authorities -> Taluk Committees

- +-- section 12 eligibility categories + prescribed income route
- +-- section 13 prima-facie entitlement control

LOK ADALAT DISTINCTION

Ordinary Lok Adalat -> settlement only; no merits decision if compromise fails.

Permanent Lok Adalat -> public utility dispute; conciliation, then bounded merits power.

LIMIT: an implementation law illustrates a directive; it does not exhaust its meaning.

ASCII MASTER FLOW – PANEL 7/9: Article 44: equality, pluralism and federal legislative design

ARTICLE 44: STATE ENDEAVOUR TO SECURE A UNIFORM CIVIL CODE FOR CITIZENS

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- +-- LEGISLATIVE BASE: Concurrent List Entry 5
- +-- CONSTITUTIONAL AIMS: equality, dignity, legal certainty and common citizenship
- +-- CONSTITUTIONAL LIMITS: religious freedom, cultural pluralism and federal diversity
- |
- +-- POSSIBLE ROUTES
 - +-- targeted removal of discriminatory rules
 - +-- optional secular civil-law route
 - +-- harmonised principles with protected diversity
 - +-- comprehensive code with consultation and transition

EXAM CONTROL

Article 44 is non-justiciable; judicial observations do not command one model.
Directives outside Part IV must not be confused with Article 36-51 DPSP text.

ASCII MASTER FLOW – PANEL 8/9: Criticism, institutional limits and constitutional relevance

CRITIQUE

no direct judicial remedy
broad, unevenly arranged aspirations
resource-dependent promises
judicial overreach risk
Centre-State friction
symbolic compliance

CONSTITUTIONAL RESPONSE

Article 37 creates duty and political sanction
breadth permits democratic sequencing and adaptation
Article 41 admits capacity; budgets expose trade-offs
interpretation cannot become continuous administration
competence, finance and institutions condition delivery
test law + institution + implementation + outcome

WHY PART IV STILL MATTERS

- +-- sets the welfare and distributive purpose of public power
- +-- guides legislation and rights-consistent interpretation
- +-- supplies standards for democratic accountability
- +-- restrains laissez-faire indifference and unbounded judicial substitution

BALANCED VERDICT: direction is binding in purpose, flexible in implementation.

ASCII MASTER FLOW – PANEL 9/9: Prelims traps, PYQ routes and the Mains answer spine

PRELIMS CONTROL BOARD

36 -> Part III meaning of State	37 -> no direct enforcement, but duty remains
39(b) resources / common good	39(c) harmful concentration
41 -> economic-capacity qualifier	45 -> below six after 86th Amendment
48A -> environment	50 -> judiciary-executive separation
51A -> Fundamental Duties, not DPSP	31C -> only 39(b)/(c); Articles 14 and 19 shield

VERIFIED ROUTES

2020: Article 50; UDHR reflection; legal aid; welfare State; Part IV force
2021: concentration of wealth 2023 GS-II: NALSA and legal aid
2025: constitutional Part matching, official local key verified

MAINS SPINE

- 1 define Part IV through Articles 36-37
- 2 map exact directive / case / law demanded
- 3 explain mechanism and implementation evidence
- 4 qualify with rights, federal competence, finance and institutional limits
- 5 conclude: distributive ends through rights-disciplined means.